

OLYA

Privacy Policy

Effective date: 27 May 2026

1. Introduction

OLYA TECH LTD ("we", "our", "us") is a company registered in Malta. We operate the OLYA platform — an AI-powered content creation and social media automation service (the "Service").

This Privacy Policy explains how we collect, use, store, and share your personal data when you visit our website or use our Service. It applies to all users of the Service and visitors to our landing page.

We are the data controller for personal data we collect about you directly. Where we process personal data you upload as part of your content workflows, we act as a data processor on your behalf.

This Policy is issued in accordance with Regulation (EU) 2016/679 (the General Data Protection Regulation, "GDPR") and the applicable data protection laws of Malta.

2. Personal Data We Collect

2.1 Data You Provide Directly

Account and registration data: your name, email address, company name, and password when you register.

Billing data: payment method details (processed by our payment provider — we do not store full card numbers), billing address, and transaction history.

Communications: messages you send us via email or support channels, including feedback and enquiries.

Profile and preferences: brand voice settings, tone preferences, content pillars, persona configurations, and other settings you configure within the Service.

2.2 Data Generated Through Your Use of the Service

Content data: images, captions, social posts, and other content you create, import, or publish through the Service.

Usage data: pages visited, features used, actions taken, session duration, and interaction logs.

Device and technical data: IP address, browser type and version, operating system, device identifiers, and time zone.

Log data: error reports, timestamps, and system activity records.

2.3 Data From Third Parties

Social media platforms: when you connect a social media account (e.g. Instagram, LinkedIn, Facebook), we receive access tokens and, where authorised by you, performance data such as reach and engagement metrics.

Payment processors: confirmation of payment status and transaction reference numbers.

3. How We Use Your Personal Data

We process your personal data on the following legal bases:

Contract performance (Art. 6(1)(b) GDPR):

- To create and manage your Account;
- To provide, operate, and maintain the Service;
- To process payments and manage your subscription;
- To send transactional communications (e.g. receipts, alerts, password resets).

Legitimate interests (Art. 6(1)(f) GDPR):

- To improve and develop the Service and AI models (using aggregated, anonymised data);
- To monitor and ensure the security and integrity of the Service;
- To detect and prevent fraud or misuse;
- To send you relevant product updates and feature announcements (you may opt out at any time).

Legal obligation (Art. 6(1)(c) GDPR):

- To comply with applicable laws, tax obligations, and regulatory requirements;
- To respond to lawful requests from public authorities.

Consent (Art. 6(1)(a) GDPR):

- To send you marketing communications where we have asked for and received your consent;
- To set non-essential cookies (see Section 7).

You may withdraw consent at any time without affecting the lawfulness of processing based on consent before withdrawal.

4. How We Share Your Personal Data

We do not sell your personal data. We share personal data only in the following circumstances:

4.1 Service Providers (Data Processors)

We engage trusted third-party service providers to support our operations, including:

- Cloud hosting and infrastructure providers;
- Payment processors;
- Email delivery and communications platforms;
- Analytics and monitoring tools;
- AI model API providers (used to generate content on your behalf).

All processors are bound by data processing agreements and are required to process data only on our documented instructions.

4.2 Social Media Platforms

When you authorise the Service to publish content to a connected social media account, we transmit content to that platform on your behalf. Each platform's own privacy policy governs data processed by them.

4.3 Legal Requirements

We may disclose personal data if required to do so by law, court order, or in response to lawful requests from governmental authorities.

4.4 Business Transfers

In the event of a merger, acquisition, or sale of all or part of our assets, personal data may be transferred as part of that transaction. We will notify you by email and/or a prominent notice on the Service before your data is transferred and becomes subject to a different privacy policy.

4.5 With Your Consent

We may share personal data for any other purpose with your explicit prior consent.

5. International Data Transfers

Your personal data is stored primarily within the European Economic Area (EEA). Where we use service providers located outside the EEA, we ensure that appropriate safeguards are in place, such as:

- Standard Contractual Clauses (SCCs) approved by the European Commission;
- Adequacy decisions issued by the European Commission;
- Other legally recognised transfer mechanisms under GDPR Chapter V.

You may request further information about the safeguards applicable to specific transfers by contacting us.

6. Data Retention

We retain personal data for as long as necessary to fulfil the purposes described in this Policy, unless a longer retention period is required or permitted by law.

- Account data is retained for the duration of your subscription and deleted within 90 days of account closure, unless we are required to retain it longer.
- Billing and financial records are retained for 7 years to comply with Maltese tax and accounting obligations.
- Content and workflow data is retained for the duration of your subscription. You may export or delete your content at any time from your Account settings.
- Usage and log data is retained for up to 24 months for security and service improvement purposes.

7. Cookies and Tracking Technologies

Our website and Service use cookies and similar technologies. We use:

Strictly necessary cookies: essential for the operation of the Service (e.g. session management). These do not require consent.

Analytics cookies: to understand how visitors use our site and Service, helping us improve user experience. We obtain your consent before placing these.

Marketing cookies: to deliver relevant advertising and track campaign effectiveness, only where you have given consent.

You can manage your cookie preferences through the cookie banner on our website or your browser settings. Withdrawing consent for non-essential cookies does not affect your ability to use the Service.

8. Your Data Protection Rights

Under GDPR, you have the following rights in relation to your personal data:

Right of access (Art. 15): to obtain a copy of the personal data we hold about you.

Right to rectification (Art. 16): to have inaccurate or incomplete data corrected.

Right to erasure (Art. 17): to request deletion of your data where there is no legitimate reason for us to continue processing it.

Right to restriction (Art. 18): to request that we limit the processing of your data in certain circumstances.

Right to data portability (Art. 20): to receive your personal data in a structured, machine-readable format and to transmit it to another controller.

Right to object (Art. 21): to object to processing based on legitimate interests or for direct marketing purposes.

Right to withdraw consent: where processing is based on consent, you may withdraw it at any time without affecting prior processing.

To exercise any of these rights, please contact us at privacy@olya.tech. We will respond within one month of receiving your request (extendable by two further months where necessary, with notice to you).

You also have the right to lodge a complaint with a supervisory authority. The relevant authority in Malta is the Information and Data Protection Commissioner (idpc.org.mt). If you are based in another EU member state, you may also contact the supervisory authority in your country of habitual residence.

9. Security

We implement appropriate technical and organisational measures to protect your personal data against accidental or unlawful destruction, loss, alteration, unauthorised disclosure, or access. These measures include encryption in transit and at rest, access controls, and regular security assessments.

No method of transmission over the internet or electronic storage is completely secure. We cannot guarantee absolute security, but we take our obligation to protect your data seriously and will notify you and the relevant supervisory authority in the event of a personal data breach as required by GDPR.

10. Children's Privacy

The Service is not directed at individuals under the age of 18. We do not knowingly collect personal data from children. If you become aware that a child has provided us with personal data without parental consent, please contact us at privacy@olya.tech and we will take steps to delete such data.

11. Third-Party Links

The Service may contain links to third-party websites or services. This Privacy Policy does not apply to those third parties. We encourage you to review the privacy policies of any third-party sites you visit.

12. Changes to This Policy

We may update this Privacy Policy from time to time to reflect changes in our practices, technology, or legal requirements. We will notify you of material changes by email or through a notice within the Service at least 14 days before they take effect. The "effective date" at the top of this Policy indicates when it was last updated.

13. Contact and Data Controller Details

If you have any questions, concerns, or requests relating to this Privacy Policy or our data practices, please contact our privacy team:

Data Controller: OLYA TECH LTD

Registered in: Malta

Email: privacy@olya.tech

We aim to respond to all privacy enquiries within 72 hours and to resolve all substantive requests within one month.